

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Melero v. City of Sanger et al.***
Superior Court Case No. 26CECG00595

Hearing Date: August 5, 2026 (Dept. 501)

Motion: Demurrer to First Amended Complaint
Motion for Preference

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To overrule the demurrer. (Code Civ. Proc., § 430.10, subd. (e).)

To take the motion for preference off calendar, as no moving papers have been filed.

Explanation:

In this action multiple plaintiffs allege that they were victims of sexual assault perpetrated by J. Dewhawn Torrence, a police officer for the Sanger Police Department. He allegedly committed the assaults while on duty as a police officer and under color of law.

The first seven causes of action are brought by the seven plaintiffs (two since dismissed) for sexual assault and battery. Causes of action 8-14 are for Gender Violence (Civ. Code, § 52.4). Causes of action 15-21 are for Sexual Harassment (Civ. Code, § 51.9). The remaining causes of action are: 22. IIED; 23. Negligence; 24. Negligent Supervision; 25. Negligent Hiring and Retention; 26. Violation of Bane Act (Civ. Code, § 52.1); and 27. Stalking (Civ. Code, § 1708.7).

The City of Sanger and Sanger Police Department (collectively, "Sanger Defendants") demur to causes of action 8-29 on the grounds that they are barred by the statute of limitations applicable to the particular causes of action, and for failure to comply with the Government Claims Act. Torrence joins in the demurrer.

In 2019, the California Legislature added Code of Civil Procedure § 340.16(a) to revive and extend the statute of limitations ("SOL") for "actions for damages resulting from sexual assault" to up to 10 years from the date of the last act. "Sexual assault" is defined in subsection (b)(1) as: "any of the crimes described in Section 243.4, 261, 261.4, 287, or 289, or former Sections 262 and 288a, of the Penal Code, assault with the intent to commit any of those crimes, or attempt to commit any of those crimes." (Code Civ. Proc., § 340.16, subd. (b)(1).)

Sanger Defendants effectively contend that the extension of the SOL only extends to causes of action explicitly labeled “sexual assault,” and no other cause of action or legal theory.

As noted above, section 340.16 extends the SOL for “any civil action for recovery of damages suffered **as a result of** sexual assault ...” (Code Civ. Proc., § 340.16, subd. (a), emphasis added.) Sanger Defendants cite to no authority indicating that expansive language such as this would limit the provision only to causes of action specifically labeled “sexual assault.” The moving and reply papers are oddly lacking in any authority supporting their position.

Plaintiffs in the opposition rely on *Doe #21 v. CFR Enterprises* (2023) 93 Cal.App.5th 1199, an action against massage chain franchisees, alleging sexual battery among other causes of action, arising from sexual assault allegations against massage therapists. The superior court sustained demurrers without leave to amend on the ground the applications statutes of limitations barred various claims. Section 340.16 was subsequently enacted reviving claims related to sexual assault. The question was section 340.16(b)(3) revived only causes of action for sexual battery. As the statute currently reads, it applied to “any civil action for recovery of damages suffered as a result of sexual assault.” (*Id.* at p. 1209.) The court noted that subdivision (a) is not limited to causes of action for sexual assault/battery: it applies to “any civil action for recovery of damages suffered as a result of sexual assault.” (*Id.* at p. 1209.) The decision, however, does not resolve what causes of action benefit from the SOL extension, stating that it was “not prepared to hold that all their causes of action are revived, because the parties’ supplemental briefs do not address the application of the amended statute to each of the causes of action alleged by each of the plaintiffs. In particular, the parties say nothing about whether section 340.16(b)(3) revives plaintiffs’ causes of action under the UCL.” (*Id.* at p. 1210.) The appeals court remanded to the trial court to address the issue in the first instance.

Other courts, however, have recognized that “section 340.16, by its terms, is not limited to *claims* of sexual assault, but applies to *any action* seeking damages as a result of sexual assault, regardless of the legal theory alleged. (*Acevedo v. eXp Realty, LLC* (C.D. Cal. 2024) 713 F.Supp.3d 740, 790, citing *Doe #21*, *supra*.)

“[T]he plain meaning of statutory language must control”. (*Pacific Palisades Bowl Mobile Estates, LLC v. City of Los Angeles* (2012) 55 Cal.4th 783, 803.) Despite Sanger Defendants’ repeated assertions that the extension applies only to “causes of action for sexual assault,” the statutory language is clearly much broader than that.

Similarly, Sanger Defendants next argue that causes of action 8-29 are barred for failure to comply with the Government Claims Act. Again, the demurrer is not supported by any authority supporting this argument.

Similar to the SOL extension, Government Code § 945.9 provides, “A claim **arising out of an alleged sexual assault** by a law enforcement officer if the alleged assault occurred while the officer was employed by a law enforcement agency is exempted from all state and local government claim presentation requirements.” (Gov. Code, § 945.9, subd. (a), emphasis added.) The language is effectively the same as that in section 340.16(a).

Since Sanger Defendants do not show that any particular cause of action pled would not fall under the umbrella of *action seeking damages as a result of sexual assault*, or would not constitute a claim arising out of an alleged sexual assault, the demurrers are overruled.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/03/26
(Judge's initials) (Date)